

**United States Department of Agriculture
Limited Source/Brand Name Justification
FAR 13.106-1(b)(1) – Simplified Acquisitions
Control No. (if applicable) Req 1147894**

1. Identification of the agency and the contracting activity.

1a. Requesting Activity Agency: United States Department of Agriculture/National Agricultural Library

1b. Contracting Activity: United States Department of Agriculture/Contracting Operations Branch

2. Description of supply or service required to meet the agency's needs.

Subscription to the RSMeans Online Complete Plus commercial software as a service. NAL uses RSMO to build complete estimates, find and validate construction costs, compare local costs against national averages, or get quick, conceptual estimates for a variety of building types. RS Means continues to grow and update their construction cost database of over 85,000-unit prices, 25,000 building assemblies and 42,000 facilities repair and remodeling costs covering every category of construction. Gordian's General Terms of Use can be accessed at:

<https://www.rsmeansonline.com/Content/RSMeansOnlineUserAgreement.pdf>

3. The rationale or circumstances for limiting competition.

A pioneer of Job Order Contracting (JOC), Gordian's solutions include the proprietary RSMeans data included in the RSMeans Online Complete Plus software. RSMeans data is North America's leading source of construction cost information. RSMeans data construction costs are widely specified in Federal contracts, and the cloud based RSMeans Data Online platform meets FedRAMP security requirements.

4. A description of the market research conducted and the results or a statement of the reason market research was not conducted.

A Sources Sought Notice was posted under Notice ID 1232SA23Q0063 on 04/08/2023 to SAM.gov for 10 days with a reponse date of 04/18/2023. The Sources Sought Notice did not publicize the option periods that were included in the contract. A Sole Source Justification was completed, but also did not include the option periods. A Notice of Intent to Sole Source was not completed prior to the base award. A Notice of Intent to Sole Surce will be posted to SAM.gov to publicize the option periods that were not publicized in the base award before I move forward with exercising Option Year Two. The current market research shows RSMeans remains one of the only construction pricing tools focused on government estimating, where other tools include suits of software for construction management, but not price estimating only.

5. Estimated price, including all options, if applicable.

Option Year Two – 05/11/2025 through 05/10/2026,

Option Year Three – 05/11/2026 through 05/10/2027,

Option Year Four – 05/11/2027 through 05/10/2028,

6. Recommended source(s).

[REDACTED]



Certifications

Supporting data that is the responsibility of technical or requirements personnel and which form the basis for this justification are accurate and complete to the best of my knowledge.

Insert Name of Program or Technical Personnel
Insert Title of Program/Technical Personnel

The information contained in this justification is accurate and complete to the best of my knowledge and belief and in accordance with Federal Acquisition Regulation 13.106-1(b)(1), I hereby determine the circumstances described above deem only one source, or limited sources, reasonably available and competition is precluded for the reasons indicated in this document.

Insert Name of Contracting Officer
Contracting Officer

The information contained in this justification is accurate and complete to the best of my knowledge and belief and in accordance with Federal Acquisition Regulation 13.106-1(b)(1), I hereby determine the circumstances described above deem only one source, or limited sources, reasonably available and competition is precluded for the reasons indicated in this document.

Insert Name of Contracting Officer/Team Lead
Contracting Officer